

ARBITRAL TRIBUNAL
ARBITRATION CASE NO. ARB/114/2026

CROSS-EXAMINATION TRANSCRIPT — MS. NEHA KOHLI

Recorded on 08.04.2026

Q: Please confirm the date on which site access for the third substation was handed over to the Respondent.

A: To the best of my recollection, it was on or about 05.03.2025, as recorded in the site diary.

Q: Is it correct that the Respondent raised no written objection at the time of handover?

A: I am not aware of any written objection raised at that time.

Q: Were you personally present at the site on 05.03.2025?

A: No, I was not personally present; my evidence on this point is based on the Claimant's contemporaneous site records.

Q: I put it to you that land-clearance formalities at the northern boundary of the site remained incomplete into April 2025. Do you agree?

A: I am aware that certain minor formalities continued into early April 2025, but I do not accept that they impeded the Respondent's ability to commence work at the main footprint of the substation.

Q: I put it to you that the certification of RA Bill No. 7 records a different figure in the Respondent's internal ledger. Do you agree?

A: I have not seen the Respondent's internal ledger and cannot comment on its contents; I can only speak to the certification register maintained by my office, which records Rs. 89,40,000.

Q: Who signed the certification register for RA Bill No. 7?

A: It was signed by the Engineer-in-Charge in the ordinary course of the certification process, as is the practice for every RA Bill under this Contract.

Q: Did the Claimant ever issue any written instruction for additional cable trenching works?

A: No written instruction was issued by the Claimant, and I am not aware of any telephonic instruction either.

Q: Is it your evidence that the Claimant's site team never discussed the discovery of an underground utility line with the Respondent's team?

A: I cannot speak to every conversation between the site teams, but I am not aware of any instance in which such a discussion resulted in an instruction to carry out additional works at the Claimant's cost.